



BY – LAW No. 25-31

The Corporation of the United Counties of Leeds and Grenville

A BY-LAW TO PROHIBIT THE OPERATION OF ALL-TERRAIN, MULTI-PURPOSE OFF-ROAD UTILITY AND RECREATIONAL OFF-ROAD VEHICLES ON ROADS UNDER THE JURISDICTION OF THE UNITED COUNTIES OF LEEDS AND GRENVILLE EXCEPTING THOSE ROADS LISTED IN SCHEDULE "A"

WHEREAS under Section 5(3) of the Municipal Act, 2001, S.O. 2001, c. 25, as amended, a municipal power, including a municipality's capacity, rights, powers and privileges under Section 9, shall be exercised by by-law unless the municipality is specifically authorized to do otherwise; and

WHEREAS under Section 9 of the Municipal Act, 2001, S.O. 2001, c. 25, as amended, a municipality has the capacity, rights, powers and privileges of a natural person for the purpose of exercising its authority under this or any other Act; and

WHEREAS the Highway Traffic Act, Chapter H. 8, R.S.O 1990, Section 191.8 (3) as amended provides "the council of a municipality may pass by-laws (a) permitting the operation of off-road vehicles or classes of off-road vehicles on any highway within the municipality that is under the jurisdiction of the municipality, or on any part or parts of such highway, subject to any limitations prescribed under clause (2.1) (b)"; and

WHEREAS the Highway Traffic Act, Chapter H. 8, R.S.O 1990, Section 191.8 (3) as amended provides "the council of a municipality may pass by-laws (b) prohibiting the operation of off-road vehicles on any highway within the municipality that is under the jurisdiction of the municipality, or on any part or parts of such highway, in accordance with a regulation under clause (2.1) (a)"; and

WHEREAS it is deemed desirable to prohibit the operation of off-road vehicles on County Roads within the jurisdiction of the United Counties of Leeds and Grenville excepting those roads listed in Schedule "A" to this by-law.

NOW THEREFORE THE COUNCIL OF THE CORPORATION OF THE UNITED COUNTIES OF LEEDS AND GRENVILLE HEREBY ENACTS AS FOLLOWS:

1. Jurisdiction

- 1.1 All-Terrain, Multi-Purpose Off-Road Utility and Recreational Off-Road Vehicles (Off-Road Vehicles) are prohibited on roads under the jurisdiction of the United Counties of Leeds and Grenville with the exception of those County Roads as listed in Schedule "A".
- 1.2 This By-law does **not** provide authority for:
- (a) Provincial highways,
 - (b) Local municipal roads,
 - (c) Private roads,
 - (d) Other roads not under the jurisdiction of the Corporation of the United Counties of Leeds and Grenville.

2. Definitions

- 2.1 **"All Terrain vehicles"** shall mean an off-road vehicle that, in accordance with the *Highway Traffic Act* and Ontario Regulation 316/03:
- (a) has four wheels, the tires of which are in contact with the ground,
 - (b) has steering handlebars,
 - (c) has a seat that is designed to be straddled by the driver,
 - (d) is designed to carry:
 - (i) a driver only and no passengers, or
 - (ii) a driver and only one passenger, if the vehicle:
 - (a) has one passenger seat that is designed to be straddled by the passenger while sitting facing forward behind the driver, and
 - (b) is equipped with foot rests for the passenger that are separate from the foot rests for the driver.
- 2.2 **"Multi-purpose off-road utility vehicle"** means an off-road vehicle that:
- (a) has four or more wheels, the tires of which are all in contact with the ground,
 - (b) has a steering wheel for steering control,
 - (c) has seats that are not designed to be straddled, and
 - (d) has a minimum cargo capacity of 159 kilograms.

- 2.3 **"Recreational off-road vehicle"** means an off-road vehicle that:
- (a) has four or more wheels, the tires of which are all in contact with the ground,
 - (b) has a steering wheel for steering control,
 - (c) has seats that are not designed to be straddled, and
 - (d) has an engine displacement equal to or less than 1,000 cubic centimetres.
- 2.4 **"Road"** shall include a common and public road, street, avenue, parkway and driveway, any part of which is intended for use or used by the general public for the passage of vehicles and includes the area between the lateral property lines thereof.
- 2.5 **"Low Pressure Bearing Tire"** shall mean a wide, balloon-type tire with rounded cross sections and no distinct shoulder area and that is designed to operate with inflation pressures of no greater than 70 kpa (10 psi).
- 2.6 **"Off-Road Vehicle"** shall mean an off-road vehicle within the meaning of the *Off-Road Vehicles Act*, O. Reg. 316/03, S.1.
- 2.7 **"Seat Belt Assembly"** means a device or assembly composed of a strap or straps, webbing or similar material that restrains the movement of a person in order to prevent or mitigate injury to the person.

3. Regulation of Off-Road Vehicles on County Roads

- 3.1 An off-road vehicle shall not be operated on a County road unless such vehicle meets all of the equipment requirements of Sections 7 to 15 O. Reg. 316/03, as amended and is operated in accordance with Sections 16 to 24 of O. Reg. 316/03, as amended.
- 3.2 The off-road vehicle shall not be driven at a rate of speed greater than:
- (a) 20 kilometres per hour, if the speed limit established under the *Highway Traffic Act* or by municipal by-law for that part of the road is not greater than 50 kilometres per hour.
 - (b) 50 kilometres per hour, if the speed limit established under the *Highway Traffic Act* or by municipal by-law for that part of the road is greater than 50 kilometres per hour.

- 3.3 There shall be a curfew, in effect seven (7) days a week, from 11:00 p.m. to 4:00 a.m. when no off-road vehicle shall be allowed to travel on roads under the jurisdiction of the United Counties of Leeds and Grenville.
- 3.4 Any Off-Road Vehicle operating on a County road shall comply with the following provisions:
- (a) An Off-Road Vehicle shall have visible reflective strips maintained on all four sides of the vehicle,
 - (b) An Off-Road Vehicle shall **NOT** have chains or studs on its tires,
 - (c) An Off-Road Vehicle will be driven in the same direction as traffic using the same side of the road and multiple Off-Road Vehicles will ride in single file one behind the other,
 - (d) An Off-Road Vehicle will be driven on the shoulder unless there is no shoulder, the shoulder is not wide enough, or the shoulder is obstructed, in which cases will be driven close to and parallel with the right edge of the treated surface of the road,
 - (e) When making a left turn, an Off-Road Vehicle shall, when it is safe to do so, move away from the shoulder or the right edge of the roadway and be positioned on the roadway in the position from which the left turn is to be made.

4. Penalties

Any person who contravenes the *Highway Traffic Act* or its Regulations or this By-law is guilty of an offence and upon conviction is liable to a fine as provided for in the *Provincial Offences Act*.

5. Validity

If any section, clause or provision of this By-law is for any reason declared by a court of competent jurisdiction to be invalid, the same shall not affect the validity of the By-law as a whole or any part thereof other than that section, clause, or provision so declared to be invalid and it is hereby declared to be the intention that all the remaining sections, clauses, or provisions of the By-law shall remain in full force and effect until repealed, notwithstanding that one or more provisions thereof shall have been declared to be invalid.

6. Rescind

By-laws No.15-50, 16-23, 16-54, 17-57, 19-54, 20-09, 22-35, and 24-37 and any by-laws, or parts of by-laws contrary to or inconsistent with this By-law are hereby repealed.

7. Effective Date

This By-law shall come into force and take effect immediately upon the passing thereof by the Council of the Corporation of the United Counties of Leeds and Grenville.

8. Schedule "A"

Schedule "A" attached hereto forms part of this by-law.

By-law read a first, second and third time and finally passed this 24th day of April, 2025.

Corinna Smith-Gatcke, Warden

Andrea Bolton, County Clerk

SCHEDULE "A" to By-law No. 25-31

Previous By-law #	County Road Alias	From	To	Sponsoring ORV/ATV Club
By-law 15-50	2	Jenkins Road East of Mallorytown	Civic Address #1633	VanRidge ATV Trails
	34	Kyes Road	Modler Road	Thousand Island ATV Club
	34	Haig Road	Lexx Road	Thousand Island ATV Club
	32	1 km South of South Lake Culvert	1 km North of South Lake Culvert	Thousand Island ATV Club
	3	1 km South of Outlet Road	1 km North of Outlet Road	Thousand Island ATV Club
	40	Beales Mills Road	Hamlet of Charleston	Thousand Island ATV Club
	35	Civic Address 384 Station Road	County Road 34	Thousand Island ATV Club
	34	County Road 35	Lexx Road	Thousand Island ATV Club
	3	Tower Road	898 County Road 2	Thousand Island ATV Club
	42	Upper Oak Leaf Road	Redford Road	Thousand Island ATV Club
	34	Cunningham Side Road	Civic Address 2655 Hiscock Road	Thousand Island ATV Club
	39	County Road 40	Park Lane	Thousand Island ATV Club
	4	Rockfield at Blue Mountain	Walburton at Blue Mountain	Thousand Island ATV Club
By-law 16-23	42	Washburn Road	Unopened Road Allowance between Lot 22 and Lot 23	Thousand Island ATV Club
	1	Strickland Road	Street Road	Rideau Lakes ATV Club
	8	Baker's Road	Botham Road	Rideau Lakes ATV Club
	5	Hanna Road	Unmaintained Concession Road	Rideau Lakes ATV Club

Previous By-law #	County Road Alias	From	To	Sponsoring ORV/ATV Club
By-law 16-54	44	2025 County Road 44 (Truck Stop) Heading North	Unmaintained Concession Road	Johnstown ATV Club
	44	McNeilly Road	Unmaintained Road Allowance	Johnstown ATV Club
By-law 17-57	2	County Road 34	Town of Gananoque	Thousand Island ATV Club
	15	Branch Road	Creekside Diner	Johnstown ATV Club
	18	Skakum Road	Weir Road	Johnstown ATV Club
	21	Glen Smail Road Unmaintained Road Allowance Heading West	Unmaintained Road Allowance	Johnstown ATV Club
	34	Cunninghame Side Rd.	County Road 2	Thousand Island ATV Club
	44	Hyndman Road Heading North	Porter Road	Johnstown ATV Club
	44	Crowder Road Heading North West	Drummond Gas Bar	Johnstown ATV Club
By-law 19-54	1	Motts Road	Elizabethtown-Kitley Line 3	Rideau Lakes ATV
	5	Lake Street	Washburn Road	Rideau Lakes ATV
	5	At Hossacke Lane Intersection		Rideau Lakes ATV
	8	Bakers Road	County Road 1	Rideau Lakes ATV
	29	Hunters Road	Elizabethtown-Kitley Line 1	Rideau Lakes ATV
By-law 20-09	44	Civic Address #2025	1.8 km north	Johnstown ATV Club
By-law 22-35	42	McCann Road	Hutchings Road	Rideau Lakes ATV Club
	10	8 th Concession Road	9 th Concession Road	Rideau Lakes ATV Club
By-law 24-37	10	Concession Street/ County Road 42	Eight Line Road (8 th Concession)	Village of Westport Request
By-law 25-31	20	Rock Road	Connell Drive	Nation Valley ATV Club

Previous By-law #	County Road Alias	From	To	Sponsoring ORV/ATV Club
By-law 25-31	20	Townline Road Between Slater Road	3085 County Road 20	Nation Valley ATV Club